

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	18-07-2026 17:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	18-07-2026 17:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Steel
विभाग का नाम / Department Name	Steel Authority Of India Limited
संगठन का नाम / Organisation Name	Bokaro Steel Plant
कार्यालय का नाम / Office Name	Bslp61
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id :harsh.nigam@sail.in Buyer Email id: animesh.jain@sail.in
कुल मात्रा / Total Quantity	1
वस्तु श्रेणी / Item Category	All In One Large LED Video display
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	All In One Large LED Video display
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Professional Large Format Display (V2), All in One PC (V2), LED Based Information Display System, High performance Computing (HPC) in a Box, Video Conferencing End Point with Integrated Display, Central Control Software for LED Based Information Display System, Integrated PA System, data wall display, A3 Size Multifunction Printer (MFP), A4 and Legal Size Multifunction Printer (MFP)
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	- LED Based Information Display System - data wall display - Professional Large Format Display (V2)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Certificate (Requested in ATC), Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	H1-Highest Priced Bid Elimination
क्रेता के लिए उपलब्ध आईटीसी/ITC available to buyer	Yes
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	5 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1+X\%$	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50
सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement(Preference to Make-in-india) order 2017 date 16.09.2020(as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order(as amended and applicable time to time)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in

which the buyer is registered.

1. Preference to Make In India products (For bids < 200 Crore): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.

[OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

3. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

If the buyer has mentioned MSE purchase preference in ATC then service provider is required to upload necessary documents for MSE purchase preference for verification by the buyer during evaluation.

All In One Large LED Video Display (1 pieces)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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इनपुट कर क्रेडिट(आईटीसी) तथा रिवर्स प्रभार (आरसीएम)/Input Tax Credit(ITC) and Reverse Charge(RCM) Details

जीएसटी पर इनपुट कर क्रेडिट /ITC on GST	जीएसटी उपकर कर क्रेडिट /ITC on GST Cess
100%	NA

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajkaran Singh	827001,DGM(Stores), Stores Department, Steel Gate, Gate No.-9, Bokaro Steel Plant, Bokaro Steel City-827001, Jharkhand	1	60

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions**1. Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Generic

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

3. Generic

Data Sheet of the product(s) offered in the bid, are to be uploaded along with the bid documents. Buyers can match and verify the Data Sheet with the product specifications offered. In case of any unexplained mismatch of technical parameters, the bid is liable for rejection.

4. Inspection

Nominated Inspection Agency: On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance:

Pre-dispatch Inspection at Seller Premises (applicable only if pre-dispatch inspection clause has been selected in ATC):

WAIVED

Post Receipt Inspection at consignee site before acceptance of stores:
By Board of Bokaro Steel Plant (BSL) Officials.

5. Scope of Supply

Scope of supply (Bid price to include all cost components) : Only supply of Goods

6. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

I. ELIGIBILITY CRITERIA

- (a) The bidder has to be Original Equipment Manufacturer (**OEM**) of the said items or their **authorized** Vendor / dealer / distributor / System House / Channel Partner (of OEM).
- (b) The authorized vendor / dealer / distributor / System / House / Channel Partner (of OEM) (hence termed as Bidder) who participate in the tender is required to submit the following document along with techno commercial bid –
 - o Valid Agreement between Bidder and OEM
 - o Valid Certification of Dealership from OEM
- (c) The average turnover of bidder should be Rs. 27,25,800.00 (Rupees Twenty Seven Lakh Twenty Five Thousand Eight Hundred Only) for any consecutive three of last four years from Bid Invitation Date. **Audited Annual Balance Sheet** (certified by chamber of commerce of bidder's place in case of Global Tender Enquiries) along with **IT-returns** (not applicable for bidder participating in Global TENDERS) of the three financial years to be submitted by the Bidder.
- (d) The bidder, if OEM, shall submit relevant documentary evidence in support of their experience in the field of "**Manufacturing** Supply & Maintenance of All in One Large LED Video 100 Inch and above".
- (e) The bidder, if authorized vendor, shall submit relevant documentary evidence in support of their experience in the field of "**Supplying & Maintenance** of All in One Large LED Video 100 Inch and above".
- The bidder shall submit Copies of **Purchase Orders and job completion certificates** as an experience of having successfully completed similar work during the last five year (from the date of issue of enquiry) as per following details, in India for PSUs/ Govt. Organizations/ Scheduled Banks
 - o One completed order of not less than or equal to 100% of the tender quantity i.e. 1 (one) only.
- (f) A **relaxation of 15% in Financial Turnover** criteria is provided in the eligibility criteria of tenders for MSEs who are eligible for preference and Startups that are recognized by Department for Promotion of Industry & Internal Trade (DPIIT). However both MSE and Startups shall have to meet eligibility conditions for quality & technical specifications/requirement.
- (g) The tenderer is required to submit self – attested photocopies of documents in support of their eligibility and experience along – with the techno- commercial bid. In addition bidder shall submit an **Affidavit** in enclosed format (**Annexure-A**) declaring that document submitted by them are g

enuine.

(h) Bokaro Steel Plant (BSL) reserves the right to call for original documents for verification at any time during tendering, evaluation and /or the execution of the contract. In case of any documents /information submitted by bidder (s) found to be false or containing any misrepresentation of having any fraudulent declaration in it, then in such eventuality, legal action (including cancellation of contract, banning of business dealing, damages, criminal proceedings etc) as deemed fit may be initiated by BSL against the bidder.

II. SECURITY DEPOSIT

In the event of placement of order, the successful tenderers shall furnish Security Deposit to the extent of 3% (Three Percent) of the value of order within 21 (twenty one) days.

SD may be submitted in the form of online transfer (NEFT, RTGS, SWIFT), Demand Draft [favoring SAIL/Bokaro Steel Plant and payable at Bokaro Steel City], Banker's Cheque, Bank Guarantee (BG) [which must be kept valid for a period covering the contractual delivery period plus six months for lodging claims, if any and the BG should be operable from the Bokaro Steel City Branch of the bank] or Fixed Deposit Receipt from any Scheduled Commercial Bank except Co-operative and Gramin Bank but shall not be accepted in cash.

In case of delays in submission of Security Deposit / Performance Guarantee, a **penalty of 0.2%** of the original SD / PG amount per completed day of delay, limited to an amount not exceeding 5 % of the original SD / PG amount shall be applicable.

Payment for executed portion of order/contract should only commence on submission of requisite SD/PG.

The security Deposit shall be released after successful execution of order. However, PSU/Govt. firms are exempted from Security Deposit clause.

III. GUIDELINES FOR OPERATION OF BANK GUARANTEES

- I. Bank Guarantee/s required to be submitted as per terms of the order/contract must be operable by SAIL-Bokaro Steel Plant at branches of the issuing banks at Bokaro Steel City.
- II. "Original bank guarantee should be sent by the issuing banks directly to DGM (F&A), SAIL—Bokaro Steel Plant, Ispat Bhavan, Bokaro Steel City-827001, Bokaro, Jharkhand under registered Post (A.D.)"
- III. The supplier shall ensure the same. However, in exceptional cases where the guarantee is handed over to the supplier/contractor by the issuing bank for any genuine reason/s, the branch should immediately send by registered post (A.D.) an unstamped duplicate copy of the guarantee directly to DGM (F&A), SAIL-Bokaro Steel Plant, Bokaro Steel City-827001, Bokaro, Jharkhand with a covering letter requesting to compare with the original receipt from the supplier/contractor and confirm that it is in order.

As and when the issuing branches receive communication from SAIL-Bokaro Steel Plant requiring

ng bank's confirmation for having issued the guarantee, the concerned bank branches must send the Confirmation letter to the concerned authorities promptly without fail.

Note:

1) Kindly indicate IFSC code and email-id of issuing/confirming bank for confirmation.

2) Claim date should be at least 03 (three) months more from validity of Guarantee ie expiry date.

List of eligible schedule Commercial Banks for acceptance of Bank Guarantee (BG)/ Security Deposit/ Bank Guarantee. *SAIL's consortium banks are :- State Bank of India, ICICI Bank, Bank of Baroda, RBL Bank Limited, Canara Bank, Axis Bank, Punjab National Bank, IDBI Bank Ltd, Indusind Bank, HDFC Bank Ltd, Bank of India, YES Bank, Kotak Mahindra Bank Ltd.

IV. SPECIAL CONDITIONS OF BID INVITATION (SCBI)

1. Vendor should deliver the item in good packing and the packing shall be good enough to prevent damage and pilferage of the material during transit.
2. The supplier must replace, free of charge, any stores & spares which owing to defect in design, material or workmanship fail or show signs of failure at any time within 12 months from date of putting them in use /operation or 18 months from date of delivery, whichever is earlier [OR as specified in Technical Specification Document, Rate Contract].
3. SAIL P1 procedure applies for Risk Purchase and banning of business dealing with non-conforming and defaulting suppliers.
4. Offers from Vendors banned/blocked/debarred in BSL system shall not be considered.
5. PAN, GST, UDYAM, Cancelled Cheque, Mandate, ISO Certificate and related documents (such as Deed of partnership or certificate of incorporation) for new vendors shall be required at the time of order creation by OEM. OEM shall also submit relevant documents that they are a manufacturer for the items.
6. In case of contradiction in terms and conditions of BI, the value suitable / favorable to BSL shall be applicable.
7. SAP PO shall be considered in all respect including Delivery and Value.
8. SAP PO shall be sent by only email to the eligible firm for which the firms must mention their email-id in the offer submitted.
9. Material rejection during Inspection shall be intimated by email and auto CRAC shall be null and void.
10. Local Content Percentage as per MII and Anti Land Border Sharing declaration shall be submitted by the OEM.
11. Bidders must check unit of the quantity being procured such as Nos or Set, Kg or Tons etc prior to quoting.

12. Offer validity after RA (or after price open for other than RA cases) shall be at least 2 months .
13. Bidders shall also submit Average Turnover for 3 years certified by CA with UDIN and IT returns for 3 yrs.
14. Bid Conditions to Prevail: Subject bid is governed by Technical Specifications as specified in the bid and Bid Conditions including Additional Specification Parameters, Bid ATC and GTC, as applicable. Any Additional conditions, specifications and documents imposed in the offer by the bidder shall not be considered for evaluation and such additional conditions shall be treated as null and void, without requesting any clarification from the concerned bidder in this respect.
15. Representation during Bidding Period: Representation/Clarifications window is available on GEM portal for all bidders during the Bidding period. Bidders are advised to use the same which shall be duly responded by the concerned Buyer before the opening of the subject bid. Any other mode used for clarifications/ representation by the bidders may not be addressed by the Buyer.
16. Documents required to be submitted by the bidders (formats attached at Buyer uploaded ATC document [Click here to view the file underlined and written in blue](#)).

V. ACCEPTANCE REQUIRED

1. Price Term – Fixed.
2. Payment Terms – 100% against GRN or as specified in Technical Specification/Document. In addition, quality and functionality requirements to be complied.
3. Terms of Delivery – F.O.R. BSL Stores, Bokaro Steel City.
4. Technical Specifications and Technical Details along-with Inspection Plan of Bid Specification Document.
5. Commercial Terms & Conditions as per NIT.
6. Special Conditions of Bid Invitation (SCBI) mentioned above.

Submit signed stamped

7. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file](#).

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---